

TENTATIVE RULING

Ignacio Rios

v.

Community Tree Service, LLC

24CV003969

(Consolidated With 24CV005091)

Plaintiff's Motion for Preliminary Approval of Class Action Settlement

Hearing Date: July 24, 2026

Plaintiff Ignacio Rios' ("Plaintiff") unopposed motion for preliminary approval of class action and PAGA settlement is **GRANTED**, subject to the conditions outlined below. The case is scheduled for a Motion for Final Approval of the Class Action Settlement on **February 26, 2027**, at 8:30 a.m., unless the parties agree to a different date. Any additional filings addressing the revisions must be submitted and served 14 days before the hearing.

Preliminarily, it appears that the settlement between Plaintiff and Defendant Community Tree Service, LLC ("Defendant") is fundamentally fair, adequate, and reasonable. [*Dunk v. Ford Motor Co.* (1996) 48 Cal.App.4th 1794, 1801-1802; *Kullar v. Foot Locker Retail, Inc.* (2008) 168 Cal.App.4th 116, 130.] However, the parties must address the issues below before final approval:

Class Notice.

A settlement notice meets due process requirements if it is "reasonably calculated, under all the circumstances, to apprise interested parties of the pendency of the action and affords them an opportunity to present their objections." [*Martorana v. Marlin & Saltzman* (2009) 175 Cal.App.4th 685, 694-695.] "[P]rovided that the settlement notice satisfies due process, the trial court ha[s] broad discretion to determine the specific form and content of the notice and to decide whether notice by first class mail, without any further follow-up by [class counsel], [i]s legally sufficient." [*Ibid.*]

The Class Action and PAGA Settlement Agreement and Release ("Agreement") states that the Class Notice shall be mailed to Class Members "in English." [Agreement, Exh. 2 to Lidman Decl. at p. 2, ¶ 1.1.] However, Jodey Lawrence of Phoenix Settlement Administrators ("PSA") attests in his declaration that PSA will mail "the Notice Packet in both English and Spanish." [Lawrence Decl. at ¶ 10.] Given these conflicting statements, the Court is uncertain whether a Spanish version of the Class Notice will be distributed to the Class Members. If so, the Agreement should be amended accordingly, and the Spanish version of the Class Notice shall be submitted to the Court as a supplemental filing. If it will not be, Plaintiff, in their supplemental filing, shall submit another declaration from PSA's authorized representative and explain why only an English version is sufficient.

The class is ascertainable, shares a well-defined community of interest, and resolution through a class mechanism is superior to individual suits.

Class Representative's Service Award.

“[T]he rationale for making enhancement or incentive awards...is that [the class representative] should be compensated for the expense or risk he has incurred in conferring a benefit on other members of the class.” [*Clark v. American Residential Services, LLC* (2009) 175 Cal.App.4th 785, 806.] Factors to consider in determining if such an award should be given include “the actions the plaintiff has taken to protect the interests of the class, the degree to which the class has benefitted from those actions, and the amount of time and effort the plaintiff expended in pursuing the litigation” along with the risk to the class representative, financial and otherwise, in commencing suit. [*Id.* at 804.]

Plaintiff requests a \$10,000 service award. [Plaintiff's Decl. at ¶ 13.] However, his declaration shows only typical participation: brief factual assistance, providing documents, attending mediation, and limited hours worked (6-8 hours). [*Id.* at ¶¶ 5-8.] The requested \$10,000 exceeds the typical \$5,000 enhancement award granted in Monterey County. While the Court will not decide on this request now, and will consider it further during final settlement approval, Plaintiff should submit a supplemental declaration demonstrating why a \$10,000 award is warranted.

Attorneys' Fees & Costs.

Counsel seeks fees of up to 35% of the Gross Settlement Amount. [Motion at 15.] Because no lodestar information, hours, rates, or multiplier justification were submitted, the Court cannot evaluate the request at this stage. The percentage request may be noticed to the class, but counsel must provide lodestar documentation with the motion for final approval. Counsel must also submit supporting documentation for any litigation cost request.

NOTE RE TENTATIVE RULING

This tentative ruling becomes the court's order, and no hearing shall be held unless one of the parties contests it by following Rule 3.1308 of the California Rules of Court and Monterey County Local Rule 7.9. Those parties wishing to present an oral argument must notify all other parties and the Court no later than 4:00 p.m. on the court day before the hearing; otherwise, **NO ORAL ARGUMENT WILL BE PERMITTED, AND THE TENTATIVE RULING WILL BECOME THE ORDER OF THE COURT AND THE HEARING VACATED.** You must notify the court by [email](#) or by calling the Calendar Department at 831-647-5800, extension 3040, before 4:00 p.m. on the court day before the hearing.